

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505185	CAMARILLO VS MATRIX NORTH AMERICAN CONSTRUCTION, INC.	DEMURRER ON 1ST AMENDED COMPLAINT FOR WRONGFUL TERMINATION (OVER \$35,000) OF HERIBERTO CALDERON CAMARILLO

Tentative Ruling: The Court SUSTAINS the general demurrer as to the 8th Cause of action with 30 days leave to amend. The Court OVERRULES the special demurrer. The Court continues the Case Management Conference to October 29, 2026, at 8:30 a.m.

General Demurrer – 8th Cause of Action – IIED

Defendant argues the IIED claim against Defendant Tosha attacks normal conversation in the workplace and involves personal management decision, which is not extreme or outrageous as a matter of law, citing *Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 80.)

In opposition, Plaintiff argues Defendant grossly misrepresents the allegations and ignores collective references to “Defendants” throughout the FAC which implicates Tosha.

The elements of a cause of action for IIED are: (1) extreme and outrageous conduct by defendant; (2) intention to cause or reckless disregard of the probability of causing emotional distress; (3) the plaintiff’s severe emotional suffering; and (4) actual and proximate causation of the emotional distress. (*Huges v. Pair* (2009) 46 Cal.4th 1035, 1050.) “It is not enough that the conduct be intentional and outrageous. It must be conduct directed at the plaintiff or occur in the presence of a plaintiff of whom the defendant is aware.” (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.)

Outrageous conduct is that which is so extreme it goes beyond all possible bounds of decency and is regarded as atrocious and utterly intolerable. (*Hughes, supra*, 46 Cal.4th 1035, 1050-1051; *Cochran v. Cochran* (1998) 65 Cal.App.4th 488, 496; *Ross v. Creel Printing & Publishing Co. Inc.* (2002) 100 Cal.App.4th 736, 745.) “Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff’s interest; (2) knows the plaintiff is susceptible to injury through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress.” (*Hernandez v. General Adjustment Bureau* (1988) 199 Cal.App.3d 999, 1007.)

The California Supreme Court has set a very high bar for this cause of action, and has also held, “severe emotional distress” means “emotional distress of such substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it.” (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 1004.)

Employment actions can involve outrageous conduct. (*Murray v. Oceanside Unified Sch. Dist.* (2000) 79 Cal.App.4th 1338, 1362-1363; *Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 618.)

In the present case, the FAC alleges, “Plaintiff is informed and believes, and based thereon alleges, that Defendant Shawn Tosha is an individual residing in California who, at all relevant times, was employed by Defendant in a managerial and/or supervisory capacity.” (FAC ¶5.) The FAC avers, “Defendants did not inform Plaintiff of his termination [on April 19, 2023] and instead continued to accept his medical notes for extended medical leave. In fact, when Plaintiff was ready to return to work in August 2023, Defendant Shawna Tosha stated she would ‘look for something’ despite knowing that Plaintiff had been terminated months earlier and there was no job for him to return to.” (*Id.* at ¶¶16, 17.) The FAC goes on to allege, “Defendants acted intentionally and recklessly through Defendant’s knowing failure to take prompt and appropriate remedial action in response to Plaintiff’s complaints, retaliatory conduct including baseless disciplinary action, wrongfully terminating Plaintiff’s employment but failing to inform him until months later – all the while misleading him into thinking he was employed and that they would find a position for him.” (*Id.* at ¶120.) Plaintiff alleges such conduct was “so extreme and outrageous that it exceeded all boundaries” and was “intended to cause severe emotional distress.” (*Id.* at ¶123.) It is further alleged Plaintiff “suffered and continues to suffer loss of reputation, shame, mortification, humiliation, embarrassment, severe mental and emotional distress and anguish, as well as severe anxiety, trepidation, apprehension, panic, dread, fear, and worry.” (*Id.* at ¶126.)

Although Plaintiff argues the collective allegations against “Defendants” implicates Tosha, the allegations, even if accepted as true, do not rise to the level of “extreme and outrageous conduct” necessary to withstand demurrer. Indeed, liability for intentional infliction of emotional distress does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. (*Light v. Department of Park & Recreation* (2017) 14 Cal.App.5th 75, 101, quoting *Huges v. Pair* (2009) 46 Cal.4th 1035, 1051; see also *Yurick v. Sup. Ct.* (1989) 209 Cal.App.3d 1116, 1128 [“there can be no recovery for mere profanity obscenity, or abuse, without circumstances of aggravation, or for insults, indignities or threats which are considered to amount to nothing more than mere annoyances. The plaintiff cannot recover merely because of hurt feelings”] [internal quotation omitted].)

It also appears Defendant Tosha’s conduct amounts to personnel management activity at worst. “A simple pleading of personnel management activity [such as termination] is insufficient to support a claim of intentional infliction of emotional distress, even if improper motivation is alleged. If personnel management decisions are improperly motivated, the remedy is a suit against the employer for discrimination.” (*Janke v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 80 [defining “commonly necessary personnel management actions” as including “hiring and firing” at p. 60].)

Accordingly, the allegations contained in the FAC do not give rise to “extreme and outrageous” based on the foregoing legal authority.

Workers’ Compensation Act (“WCA”). Defendant argues Plaintiff’s IIED claim against Tosha is barred by the WCA given Tosha was acting within the employment relationship. Defendant points out the FAC does not allege Tosha retaliated or discriminated against Plaintiff and does not include any FEHA based claims against Tosha.

In opposition, Plaintiff argues the WCA is inapplicable. While Plaintiff concedes that the IIED claim against Tosha is in relation to her role in Plaintiff's termination, Plaintiff asserts the IIED claim is largely based on harmful conduct after Defendants terminated Plaintiff, even if he had not yet been informed of it. Plaintiff explains that although the termination may fall under the WCA, the intentional act of misleading and stringing along an employee for months after his termination falls outside of the compensation bargain. Plaintiff claims the WCA is also inapplicable because the IIED claim is tethered to conduct that violates the FEHA, relying on *Light v. Department of Parks & Recreation* (2017) 14 Cal.App.5th 75, 96.

The Worker's Compensation Act covers employee injuries where: (1) both the employer and employee are subject to the provisions of the Worker's Compensation Act; (2) the employee is performing service related to and within the course of employment; (3) the injury is proximately caused by employment; and (4) the employee's injury is not self-inflicted, does not arise out of an altercation in which the injured employee is the initial physical aggressor, or in the course of the employee's commission of certain felonies or while intoxicated or engaged in voluntary off-duty recreational activities. (See Lab. Code § 3600, subd. (a).) The general rule is that Workers' Compensation is, "the sole and exclusive remedy of the employee or his or her dependents against the employer" for work-related injuries. (Lab. Code § 3602, subd. (a); (*Rymer v. Hagler* (1989) 211 Cal.App.3d 1171, 1177.)

As pointed out earlier, allegations of improper personnel management activity are insufficient to support a claim of intentional infliction of emotional distress. (*Janken, supra*, 46 Cal.App.4th 55, 80.) "[E]motional distress caused by misconduct in employment relations (e.g., promotions, demotions, criticism of work practices, or grievance negotiations) may, regrettably, be considered to be a normal part of the employment environment" and therefore subject to the workers' compensation exclusivity rule. (*Murray v. Oceanside Unified School Dist.* (2000) 79 Cal.App.4th 1338, 1362.) However, IIED may be based on claims of discrimination and harassment. (See *Robinson v. Hewlett-Packard Corp.* (1986) 183 Cal.App.3d 1108, 1127, use of extreme racial slurs is outrageous conduct.) Because unlawful discrimination and harassment in violation of FEHA fall outside the standard employment relationship and compensation bargain, claims of emotional distress based on such violations are not subject to the WCA. (*Sheppard v. Freeman* (1998) 67 Cal.App.4th 339, 353.)

Here, the FAC does not allege FEHA causes of action against Tosha. However, the underlying conduct that forms the basis of the IIED cause of action against Tosha is the same that supports Plaintiff's FEHA claims against Matrix.

In *Light, supra*, 14 Cal.App.5th at 80-81, 88, the plaintiff asserted retaliation and IIED claims against her former employer and supervisors. The Court of Appeal found there was direct evidence of retaliation against plaintiff. (*Id.* at 95.) The Court of Appeal held the workers' compensation exclusivity rule does not bar a plaintiff's claim for IIED. (*Id.* at 81.) As to the IIED claim, the court concluded "that unlawful discrimination and retaliation in violation of FEHA falls outside the compensation bargain and therefore claims of intentional infliction of emotional distress based on such discrimination and retaliation are not subject to the workers' compensation exclusivity." (*Id.* at 101.) The court held the **plaintiff was allowed to pursue a claim of IIED in the employment context**

where the conduct at issue violates FEHA and satisfies the elements of the claim. (*Id.*, emphasis added.)

Applying *Light*, Plaintiff is not barred by the WCA given the FEHA claims alleged against Matrix and there are allegations for alter ego and agency. (FAC ¶¶6-9.)

However, Plaintiff failed to allege facts sufficient for an ILED claim. Thus, the Court **SUSTAINS** the demurrer with 30 days leave to amend.

Special Demurrer - Uncertainty

A special demurrer for uncertainty lies only where the complaint is so poorly drafted that the defendant cannot reasonably respond. That is, the defendant cannot reasonably determine what issues must be admitted or denied or what claims are asserted against him. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Where it is alleged that a pleading is uncertain, the movant must specify how or why the pleading is uncertain, and where such uncertainty appears in the face of the pleading under attack. (*Fenton v. Groveland Comm. Services Dist.* (1982) 135 Cal.App.3d 797, 809 [overruled on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300, 328].) Defendant's special demurrer disputes facts stated in the FAC, and as such, it cannot be "so ambiguous or unintelligible [she] cannot reasonably respond." The Court **OVERRULES** the special demurrer for uncertainty.